
Trump's New Grift Is His Most Brazen ... Ever?

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Jim Newell

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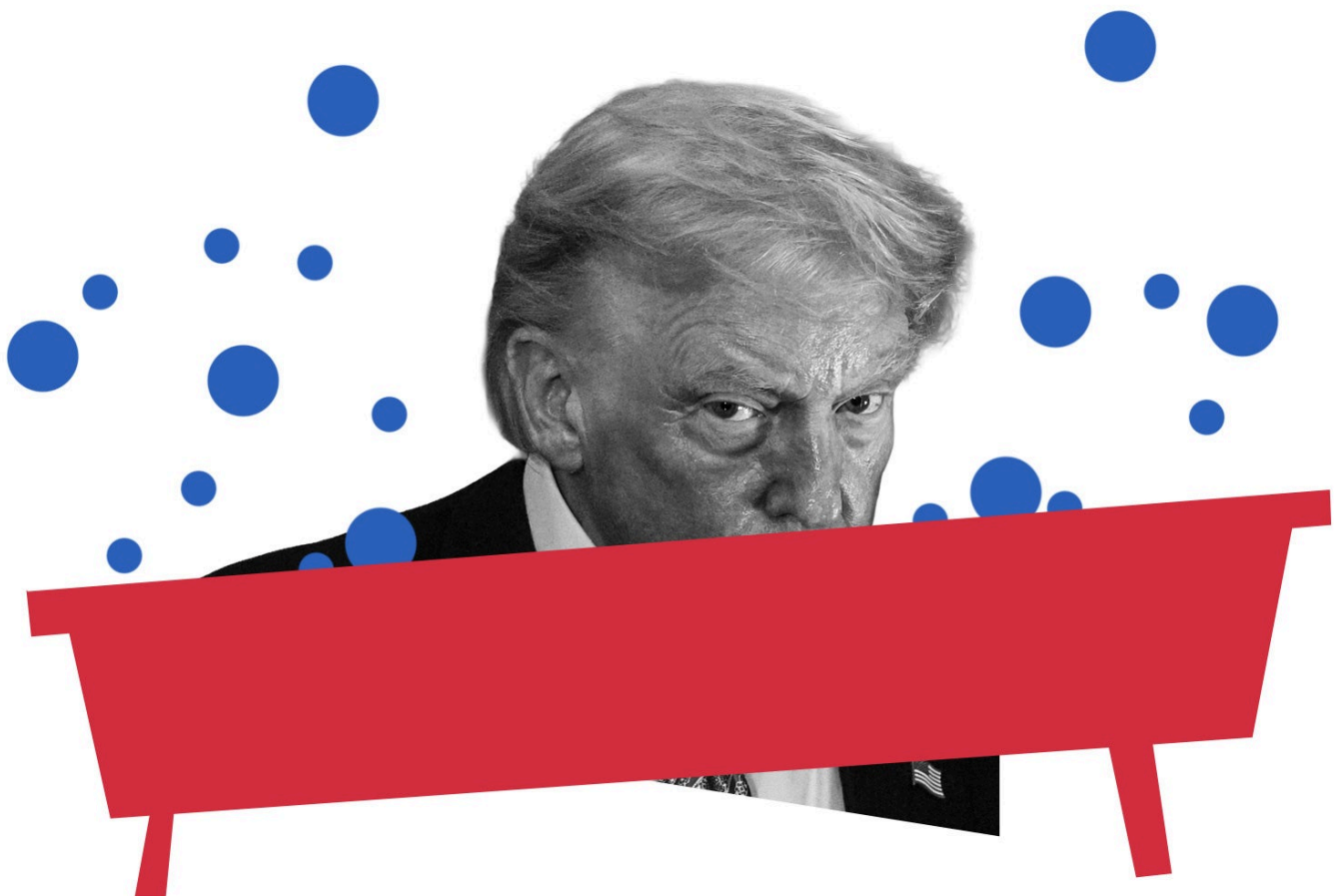
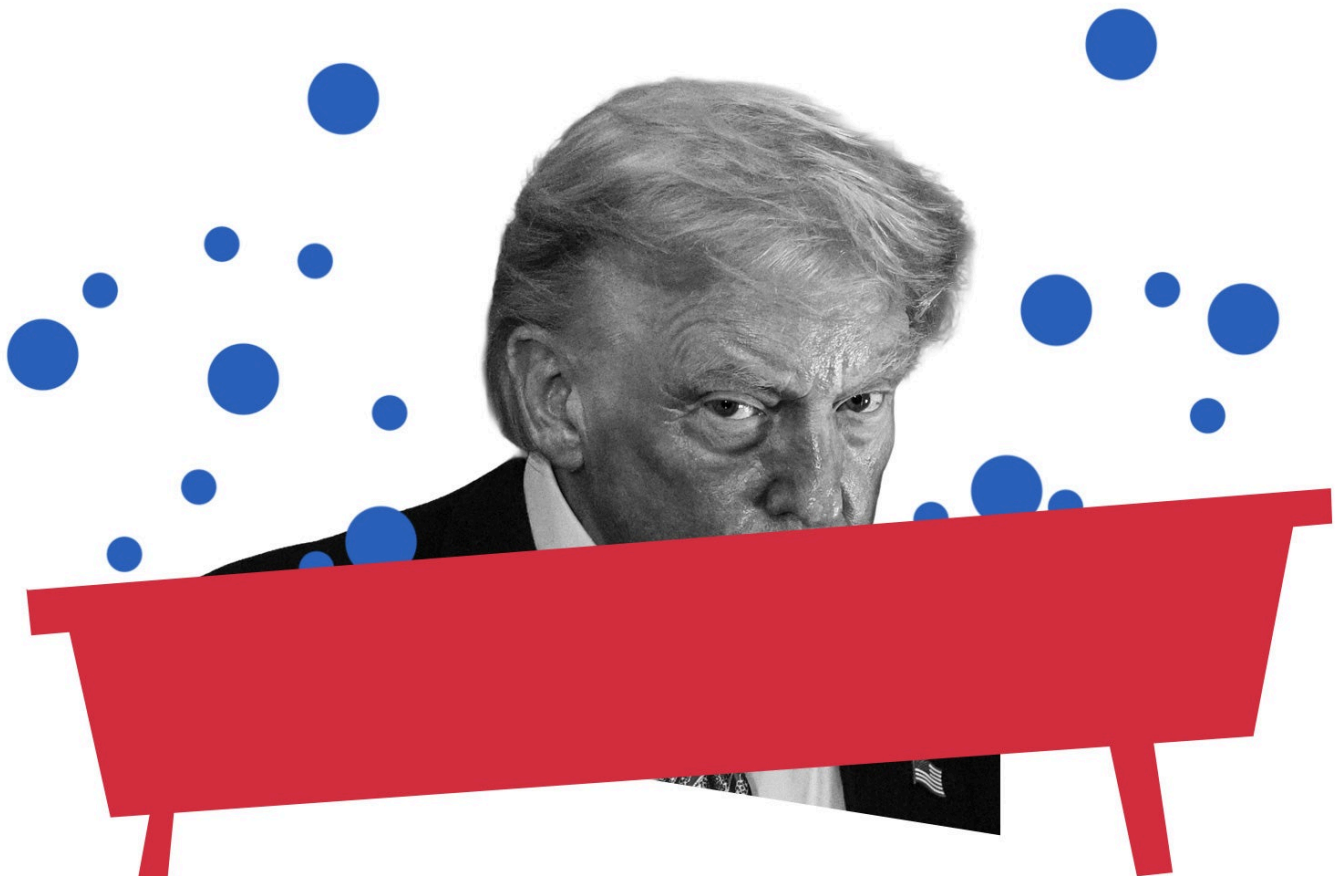


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[Sign up for the Surge](#), the newsletter that covers the most important political nonsense of the week, delivered to your inbox every Saturday.

Welcome to this week's edition of the Surge, a politics newsletter that has never once been banned from a D.C. bar for [launching into antisemitic rants directed at Irish-Italian Catholic lawmakers](#). Now, anti-Catholic rants directed at Jewish lawmakers? That's a different story.

This week, we maintain our unnecessary obsession with the California governor's race and get to work on our obituary of Sen. Bill Cassidy's political career. Silly episodes abounded in congressional budget hearings. Plus: The mysterious case of a missing New Jersey lawmaker.

(You know what *e/se* happened this week? Slate released its new season of Slow Burn, this one about the making of Supreme Court Justice Neil Gorsuch and written and reported by Slate's Susan Matthews. Listen [on your phone here](#) or [on your computer here](#).)

We'll begin this week, though, with two entries of service journalism about a couple of suspect uses of taxpayer dollars that are in the pipeline.

1.

Donald Trump

The IRS lawsuit scheme nears its payoff.

In late January, Trump [sued](#) the IRS and Treasury Department for \$10 billion over tax returns that, years ago, were leaked to the public. This unusual instance of the president suing his own executive branch looked like a setup from the start. It opened a possibility of an out-of-court settlement with his Justice Department lackeys for whatever he wanted.

The suit [isn't faring so well in court](#), as the judge has questioned whether the two parties are "sufficiently adverse to each other." (You're on to something, judge.) That means it might be time for the crafters of this shakedown to stop pretending to go through the legal process and just wire the cash already. The New York Times [reported](#) early in the week that the Justice Department "is holding internal discussions about settling" the case. The terms were still being batted around, and CNN reported that a settlement [could](#) "include a provision on the IRS dropping audits of the president and members of his family, as well as audits of the family's businesses."

The latest [report](#) from ABC News, though, is that Trump might drop the suit "in exchange for the creation of a \$1.7 billion fund to compensate allies who claim they were wrongfully targeted by the Biden administration." We can't help but get a kick out of the Justice Department recognizing that straight-up paying Trump would look bad, and viewing a *slush fund to give to Trump's friends* as some sort of reasonable compromise. It would merely be a different flavor of raiding the Treasury for personal gain. Keep an eye on this one. That shouldn't be hard, since they're making no effort to conceal it.

2.

Elizabeth MacDonough

Will she spoil the fun of a vote on the ballroom?

Moving on to Trump's other big expense he's trying to justify putting on the company credit card: the beautiful White House ballroom. Congressional Republicans' reconciliation bill offers the Secret Service \$1 billion that can be used on security-related elements of the "East Wing Modernization Project"—THE BALLROOM—such as, perhaps, secure walls, ceilings, and floors, among other things. Republicans in both chambers are [understandably nervous](#) about the politics of using public cash to build Trump a playroom, though. Briefings from Secret Service leadership on the Hill this week did not change any minds.

Republicans' best hope for getting out of this jam may come in the form of old Surge friend Elizabeth "The Hammer" MacDonough, the Senate parliamentarian, who will determine what is and isn't allowed in the bill under the [strict rules of reconciliation](#). Democrats are challenging the provision under a technicality, arguing that it's [outside the jurisdiction](#) of the committee that put it in the bill. They may well win. But to what end? Each party seems to be arguing to MacDonough the opposite of what it wants. Democrats are pretending that they don't want to see Republicans vote on \$1 billion in ballroom bucks, while Republicans are pretending that they do want to vote on it. For the purposes of fun—a key element of the Senate parliamentarian's work—MacDonough should determine that, under Senate rules, the \$1 billion can only go to chandeliering, gold leaf work, and things of that nature in the ballroom, and then let the votes fall where they may.

3.

Bill Cassidy

Farewell now, or in a month?

Louisiana holds its Senate primary today, and the biggest question is whether Sen. Bill Cassidy will become the first incumbent senator to lose a primary in nearly a decade in this round of voting or in a likely runoff next month. Cassidy, Trump-endorsed Rep. Julia Letlow, and state treasurer John Fleming have been [relatively bunched in the polling](#). Letlow has Trump's endorsement, but she has never had to run a competitive, nasty race before, and Cassidy is assailing her for having previously [supported DEI initiatives](#) in her past work—before DEI was understood in GOP politics to be the devil's work. Fleming, meanwhile, hasn't had much to spend, and has always been somewhat of a gadfly going back to his years in the House of Representatives.

Even with those weaknesses of his two opponents, though, we don't see how Cassidy—who's living his political punishment for having voted to convict Trump in his impeachment trial five years ago—would have much of a path. He either doesn't advance to the runoff in Saturday's vote, or he

has to face a MAGA candidate in very pro-MAGA runoff electorate. It's not a coincidence that he finds himself in this situation; Louisiana [scrapped](#) its jungle primary system a couple of years ago so that Cassidy would be easier to boot. The bottom line is that Trump wants Cassidy *gone*, and Louisiana Republican primary voters are not the sort to deny Trump what he wants in the end.

4.

Xavier Becerra

California, this is your king?

The Surge doesn't live in California. California can do whatever it wants. And yet, its governor's race keeps finding its way into our national politics newsletter, because we can't believe the dopiness we continue to see. As we [wrote last week](#), former congressman, state attorney general, and Biden Cabinet secretary Xavier Becerra has leapt in the polls since former Rep. Eric Swalwell's exit from the race. Why? Well, voters have to vote for someone, and he was arguably the least annoying candidate.

Was being the key word. In a clip that went viral this week, Becerra was involved in the most [nails-on-a-chalkboard exchange](#) with a reporter that we've witnessed in recent memory. He asks the reporter, in a little whiney baby's voice, "By the way, this is a profile piece, this is not a gotcha piece, right?" Then he explains that a "profile" can have tough questions, but "not only tough questions." Cool. It was a smarmier version of fellow candidate Katie Porter's infamous interview with CBS last fall in which she, too, [tried to police](#) the reporter's questioning. One-party rule has a way of making candidates soft.

5.

Mitch McConnell

Trump defends Mitch McConnell? Against his staffer??

Mitch McConnell is not in the best of shape. After so many falls and hospitalizations, he's taking a wheelchair around the Capitol. He's slurring and halting in his speech. And there was an [incident](#) this week while McConnell was chairing his defense appropriations subcommittee hearing. When he suggested that there was only one more senator left to ask questions, a staffer interjected to tell him—in words picked up by the mic—that several additional senators had time to speak. McConnell appeared flummoxed.

Then it got weird. Trump posted about the incident, but surprisingly *not* to mock McConnell for being old. Instead, he went after the McConnell staffer, longtime Hill defense policy aide Robert Karem. "This was a case where Mitch wasn't confused, he just didn't understand why he was being asked to do something when it was too late, and people were wrapping up to leave." Trump then went

after Karem, saying he had “tremendous Democrat support, far greater than he should have, and is praised relentlessly by Obama’s people.” He [encouraged](#) McConnell to “FIRE THE BUM!” We are not sure what exactly happened during Karem’s tenure in the first Trump administration at the Pentagon to make him feel this way. (Probably just that he defended NATO or something.) But it’s rare enough to see Trump name and shame a Hill staffer, and rarer still to see him bypass a cheap shot at McConnell to get there.

6.

Kash Patel

Another edifying hearing for the viewing public.

The FBI director was also on the Hill this week for a budget hearing and, in an unorthodox strategy for a setting where you’re asking Congress for money, was eager to fight. So when Maryland Sen. Chris Van Hollen asked him about the Atlantic’s recent [report](#) regarding his alleged drinking on the job, Patel leapt at Van Hollen with a set of smears. He accused Van Hollen of “slinging margaritas in El Salvador on the taxpayer dollar with a convicted, gang-banging rapist,” referring to the Salvadoran president’s [staged photo](#) of Van Hollen with Kilmar Abrego Garcia last year. He also accused Van Hollen of running a “\$7,000 bar tab” in D.C. (Van Hollen later [explained](#) that he rented out the bar for his staff holiday party with campaign funds.) Then they challenged each other to take tests about their drinking habits; Van Hollen has [released his](#) while Patel has not.

This wasn’t the only story about the exciting lifestyle of Kash Patel this week, either. The Associated Press reported that during a visit to Honolulu last summer, Patel [took](#) part in “what government officials described as a ‘VIP snorkel’ around [the USS Arizona](#) in an outing coordinated by the military.” Well, wouldn’t you go snorkeling around a solemn mass entombment if you got the chance, too? We wonder how much longer Patel has before Trump finally gets sick of the headlines.

7.

Tom Kean Jr.

Where is this guy?

Someone is missing, and no one knows where the hell he is! Specifically: New Jersey GOP Rep. Tom Kean Jr., who last voted in the House on March 5 and has been MIA ever since. The public explanation from Kean, in an [X post](#) attributed to him, is that he’s been dealing with a “personal medical issue” and that he’s expected to return to a full schedule “very soon.” He posted that on April 27, though, and there’s still no sign of him. This week, he was [dropped](#) from the program of an event on May 28 because of his health issue.

What’s been unusual about this absence is that no one seems to have a clue what’s going on.

Punchbowl News [reported](#) that House GOP leaders don't know; Kean has only spoken to Speaker Mike Johnson once. Politico [reported](#) last month that the two other Republicans in New Jersey's GOP delegation had reached out to him and not heard anything in return. When the Times [asked](#) his chief of staff why he had not been seen in New Jersey or Washington during all this time, the chief cryptically responded, "There's no cameras where Tom is." The Surge wishes Kean well, but it's an interesting strategy for his team not to offer even the slightest clue to his constituents why he hasn't been able to work for months—especially as Kean's district is one of the most competitive in the country.

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